

The National Commission For Safai Karamcharis Chairperson, Vice Chairperson And Members (Conditions of Service) Rules, 1997

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The National Commission For Safai Karamcharis Chairperson, Vice Chairperson And Members (Conditions of Service) Rules, 1997

UNION OF INDIA

India

The National Commission For Safai Karamcharis Chairperson, Vice Chairperson And Members (Conditions of Service) Rules, 1997

Rule

THE-NATIONAL-COMMISSION-FOR-SAFAI-KARAMCHARIS-CHAIRPERSON-VICE-CHAIRPERSON-AND-MEMBER S-CONDITIONS-OF-SERVICE-RULES-1997 of 1997

Published on 8 September 1998

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The National Commission For Safai Karamcharis Chairperson, Vice Chairperson And Members (Conditions of Service) Rules, 1997

Published vide Notification Gazette of India, G.S.R. 569(E) dated 8th September, 1998
1923.

G.S.R. 569(E) dated 8th September, 1998. - In exercise of the powers conferred by sub-section (1) read with clause (a)

of sub-section (2) of Section 15 of the National Commission for Safai Karamcharis Act, 1993 (64 of 1993), the Central Government hereby makes the following rules, namely:

1.

Short title and commencement.

(1)

These rules may be called the National Commission for Safai Karamcharis Chairperson, Vice-Chairperson and Members (Conditions of Service) Rules, 1997.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definition.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the National Commission for Safai Karamcharis Act, 1993 (64 of 1993);

(b)

"Chairperson" means the Chairperson of the Commission;

(c)

"Commission" means the National Commission for Safai Karamcharis constituted under Section 3;

(d)

"Member" means a Member of the Commission;

(e)

"Sec." means a section of the Act;

(f)

"Vice-Chairperson" means the Vice-Chairperson of the Commission.

3.

Rank and status.

- [(i) The Chairperson, Vice-Chairperson and every member shall have the rank of the Secretary to the Government of India unless otherwise specified.

1. The Chairperson, Vice-Chairperson and Members shall be entitled to such salary, allowances and other facilities as are admissible to the Secretary to the Government of India.

Provided that the Chairperson shall also be entitled to a rent-free accommodation.]

[Substituted by G.S.R. 657(E), dated 1st August, 2003.]

4.

Salaries and allowances.

(1)

The Chairperson shall be entitled to monthly salary and allowances at the same rate as is admissible to a Union Deputy Minister. The Vice-Chairperson and Members shall receive pay and allowances as is admissible to secretary to the Government of India.

The Vice-Chairperson and Members shall receive pay and allowances as is admissible to secretary to the Government of India.

(2)

Notwithstanding anything contained in [sub-rule (1), if the Chairperson, Vice-Chairperson or any other Member is a Member of Parliament, or a State Legislature]

[Substituted by G.S.R. 657(E), dated 1st August, 2003.]

, he shall not be entitled to any remuneration other than the allowances, defined in clause (a) of Section 2 of the Parliament (Prevention of Disqualification) Act, 1959 (

10 of 1959

) or as the case may be, other than the allowances, if any, which a Member of the Legislature of the State may, under any law for the time being in force in the State relating to the prevention of disqualification for Membership of the State Legislature receive without incurring such disqualification.

5.

Accommodation.

- The Chairperson, Vice-Chairperson and Members shall be eligible to the use of the government accommodation, as admissible under the relevant rules governing such accommodation, subject to availability.

6.

[Travelling Allowances.

[Substituted by G.S.R. 657(E), dated 1st August, 2003.]

- The Chairperson, Vice-Chairperson and Members shall be entitled to travelling allowances and daily allowances in respect of journeys performed by them in connection with the work of the Commission at the rates as are admissible to the Secretary to the Government of India."]

7.

Leave.

- The Chairperson, Vice-Chairperson and every Member shall be entitled to leave as follows :-

(a)

earned leave, half pay leave and commuted leave in accordance with the Central Civil Services (Leave) Rules, 1972 as amended from time to time, and

(b)

extraordinary leave as admissible to temporary Government servants under the Central Civil Services (Leave) Rules, 1972 as amended from time to time.

8.

Provision for retired persons appointed as Chairperson, Vice-Chairperson and other Members of the Commission.

- Where a person retired from service under the government or any local body or authority owned or controlled by the Government, is appointed as Chairperson, Vice-Chairperson or a Member after such retirement, the salary admissible shall be reduced by the amount of pension and pension equivalent of any other form of retirement benefits. If a person is appointed on re-employment basis, his pay shall be regulated as per the Central Civil Services (Fixation of Pay of Re-employed pensioners) Orders, 1986 as amended from time to time.

9.

Arrangement in case of permanent or temporary vacancies.

(1)

If the office of the Chairperson becomes vacant or if the Chairperson is for any reason absent or unable to discharge the duties of his office, those duties shall, until the new Chairperson assumes office or the Chairperson resumes his office, as the case may be, be discharged by the Vice-Chairperson.

(2)

If the office of the Vice-Chairperson becomes vacant or if the Vice-Chairperson is for any reason absent or unable to discharge the duties of his office, those duties shall, until the new Vice-Chairperson assumes office, or the Vice-Chairperson resumes his duties, as the case may be, be discharged by such other Member as the Central Government may direct.

10.

[Saving.

[Substituted by G.S.R. 657(E), dated 1st August, 2003.]

- In respect of any matter not covered by these rules, the Chairperson, Vice-Chairperson and members shall be governed by such rules or orders as may be applicable to a Secretary to the Government of India.]

11.

Residuary provision.

- Matter relating to the conditions of service of the Chairperson, Vice-Chairperson or other Members with respect to which no express provision has been made in these rules, shall be referred in each case to the Central Government for its decision and the decision of the Central Government thereon shall be binding on the Chairperson, Vice-Chairperson and other Members of the commission.

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